

BISMILLAHIR RAHMANIR RAHIM

CKCL FOOD DEPARTMENT MANAGEMENT AND OPERATION AGREEMENT
BETWEEN
CHITTAGONG KHULSHI CLUB LTD.

This Agreement will be Valid from 1st November 2022 to 30th October 2027. (5 years)

As per Board of Decision, 1st Executive Committee Meeting, Agenda No – 13 and 19th Virtual Executive Committee Meeting, Dated 1st March 2021, Agenda No – 04. Founder President, Mr. Mohammad Niaz Morshed Elite (Code No – FM0001) is responsible for running the CKCL Café/Food Department and Founder Vice President, Mr. Mohammed Rafique Uddin Babul Bhuiyan (Code No – FM0002) will execute the agreement on behalf of the Club.

As per mentioned in Clause No – 03, Page No – 01, of the companies ACT.XVIII of 1994. A company limited by guarantee and registered under section 29 of the ACT memorandum of association of Chittagong Khulshi Club Limited.

As per Clause No – 09 to 19 and Page No – 02, 03, of the companies ACT.XVIII of 1994. A company limited by guarantee and registered under section 29 of the ACT memorandum of association of Chittagong Khulshi Club Limited.

(a) Md. Niaz Morshed Elite, Founder President, Chittagong Khulshi Club Ltd. (Code No – FM0001) (b) Address: Holding No - 611/1614, Concord Amusement Park Road, Opposite of Ansar Camp, Foyslake, Chattogram. (c) Father Name: Monirul Islam Yousuf. (d) Mother Name: Lothfun Nahar. (e) Date of Birth: 13th October 1983, (f) NID No: 0515347155314, (g) Email: nmelite@hotmail.com, (h) E-Tin No: 358 - 104 – 2143, (i) Cell No: +88019 13 123 230 (j) Passport No: BC0916922, (k) Driving licence No: (l) Nationality: Bangladeshi

(a) Mohammed Rafique Uddin Babul Bhuiyan, Founder Vice President, Chittagong Khulshi Club Limited, (Code No – FM0002). (b) Address: Holding No - 611/1614, Concord Amusement Park Road, Opposite of Ansar Camp, Foyslake, Chattogram. (c) Father Name: Bir Mukti Juddha Shaheed Dr. (Captain) Kabir Ahmed Bhuiyan, (d) Mother Name: Mrs. Rezia Begum, (e) Date of Birth: 1st January 1968, (f) NID No: 191 699 2744, (g) Email: vpckcl@gmail.com, (h) Cell No: +88019 14 896 652, (i) Passport No: BT0279039, (j) Driving License No: CG0048670CL0008, (k) E-Tin No: 313 - 105 - 7310/ Circle – 1, (l) Nationality: Bangladeshi

----- First Part Authorities

AND

(a) Rakib Mohammed Nadim, Managing Partner, MACLARENS (b) Father Name: Mohammed Rafique Uddin Babul Bhuiyan, (c) Mother Name: Mrs. Shaheda Akhter, (d) Address: Bir Mukti Juddha Shaheed Dr. Captain Ahmed Kabir Bhuiyan Bari, R.K.R Trade Center, House No: 234, 1st Floor, Paharika Residential Area, Jhawtola Station Road, South Khulshi, P.S: Khulshi, Chattogram. (e) Date of Birth: 1st March 1999, (f) NID No: 2405238201, (g) Email: rakibmdnadim@gmail.com, (h) Cell No: +88017 86 493 740, (i) E-Tin No: 354508720597 Taxes Circle 047, Taxes Zone 03. (j) Passport No: BY 0878019, (k) Driving Licence No: CG0167285CL0004, (l) Life Time Member, Chittagong Khulshi Club Limited. (Code No: LM0080)

----- Second Part Authorities

In the Name of Almighty Allah we both Parties have discussed and executed the policy and temporary agreement to operate the (CKCL) Food Department subject to the following terms and conditions.

Chittagong Khulshi Club Limited (CKCL) on its own land, Address: Holding No - 611/1614, Concord Amusement Park Road, Opposite of Ansar Camp, Foyslake, Chattogram. Initially in a Small Area Measuring Approximately 100'/42' × 2 = It was Decided to Construct an Air-Conditioned 2 (two) Storied Building (one roof, alabaster tin on top) of 10,400 (Ten Thousand Four Hundred) Square Feet.

Management and Operation Agreement has been entered into the subject to the following conditions. However, apart from the Sports Area, Barbar Shop and Gym. It was decided to open rooms/cottages and BAR on the second Floor. In that Case, the management and operation agreement will be executed subject to conditions with the new Company. Interior Design Full Furnished and Equipment with Infrastructure Development etc. will be completed by the Club authority (CKCL) to organize and facilitate the following types of food on the ground floor of the said building.

FOOD DEPARTMENT Section Name. For Example:

1. 1 - Nos Restaurant
2. 1 - Nos Bar B.Q Zone (Open Space)
3. 1 - Nos Juice Bar
4. 1 - Nos Coffee Shop
5. 1 - Nos Ice Cream Parlour
6. 1 - Nos Sweet and Bake Shop
7. 1 - Nos Kitchen

TERMS AND CONDITIONS

1. CKCL Food Department Shop Size:
 - a. Coffee Shop: 500 sft.
 - b. Juice Bar: 100 sft.
 - c. Sweet & Bakery Shop: 100 sft.
 - d. Ice Cream Parlor: 100 sft.
 - e. Restaurant: 800 sft.
 - f. BBQ Open Area: 1000 sft.
 - g. Kitchen: 800 sft.
 - h. Store Room: 100 sft.
 - i. Office Room: 100 sft.
 - j. Generator Room: 100 sft.
 - k. Reserver Water Tang: 20'/20' 400 sft. (For all)

2. Beautification activities are started by land skipping or drawing on the smart side of all the Land before taking up the Construction of the Building.
3. The Two-Storeyed Building that has been decided to be constructed has the following infrastructure details of the building.
 - a. Plumbing wiring,
 - b. Electrical wiring,
 - c. Air Conditioners wiring,
 - d. Generator wiring,
 - e. Water Reservoir tank for all,
 - f. Water Reservoir tank on roof top, for Water Circulation for all,
 - g. Sound System,
 - h. Security System CC Camera,
 - i. Safety Tank etc. and complete furnished with equipment.
4. The SECOND PARTY shall pay an advance of BDT 1,00,000,00 (One Crore) by 1st November 2022 through Account Payee Cheque to the FIRST PARTY (i.e. CKCL Authority) and also will be considered as deposit.
5. At the end of the agreement, after handing over the management and operation of the food department officially to the FIRST PARTY (i.e. CKCL Authority). The FIRST PARTY will return the deposit of BDT 1,00,000,00 (One Crore) to the SECOND PARTY through Account Payee Cheque, the money will be released within 15 to 30 days from the FIRST PARTY. However, if the FIRST PARTY makes any kind of negligence in returning the deposit money to the SECOND PARTY, in that case, FIRST PARTY will come under the prevailing law of the country and the food department will be occupied or held by the SECOND PARTY until a legal resolution is reached between the SECOND PARTY and the FIRST PARTY Authorities.
6. Both the Authorities have discussed and fixed the monthly lump sum profit or rent of BDT 1,50,000.00 (One Lac Fifty Thousand) only for the Food Department. The SECOND PARTY will pay monthly BDT 1,50,000.00 (One Lac Fifty Thousand) only to the FIRST PARTY within 1st – 10th day of every month through Account Payee Cheque.

7. Since CKCL Authorities will use digital sub-meter as per Government rules, the SECOND PARTY will pay all the electricity bill of the Food Department through prepaid card recharge to related Meter and provide a copy of electricity bill to the office of CKCL Authority.
8. Supply of Water to Food Department will be done by CKCL Authority.
9. 1 (One) month before the expiration of 5 (Five) years period of Food Department Management and Operation Agreement with the SECOND PARTY, the agreement can be renewed again through negotiation between both the Authorities. In this case, new management and operation rules with monthly lump sum revenue and deposit will be implied. The Duration of the agreement can be renewed.
10. If the FIRST PARTY (i.e. Club Authority) deems it necessary to take over the Food Department's Management and Operation from the nominated company "MacLarens" (SECOND PARTY). In that case, the decision or timing will be determined through discussion with the SECOND PARTY. 2nd Party Accounts with due Respect and Advance Deposit Amount, or 1 (One Crore) of Principal Deposit, Account pay cheque, from the first Party (i.e. Club Authority) (2nd Party) Understand MacLarens Company and the Personal Furniture Purchased by the 2nd Party will take.
11. If the SECOND PARTY can't run the Management and Operation of the Food Department for any reason. In that case, SECOND PARTY will have a discussion with the FIRST PARTY and whatever the decision has taken in the discussion the SECOND PARTY will give a written notice to the FIRST PARTY and the 1st Party at the time or Decision will be taken Between the two Authorities through Discussion with the 1st Party.

12. If any new regulations are imposed by the Bangladesh Government for all the Clubs such as Chittagong Club Limited, Senior Club Limited, Gulshan Club Limited, Dhaka Club Limited, All Community Club Limited, Capital Club Limited, Narayanganj Club Limited, Comilla Club Limited and other famous clubs need to be closed for any reason then in serial (6) it has been mentioned that the monthly fixed amount may be temporarily suspended by the CKCL Authorities after discussing the matter.
13. Security and Disciplinary Rules of the Club.
(As per CKCL By Laws)
14. FIRST PARTY (i.e. Club Authority) will provide the registered Club Members details to the SECOND PARTY and as per discussion, SECOND PARTY will give 15% discount to all the club members who will come to the Food Department.
15. If a Registered Member wants to keep the food bill outstanding, they can keep it as per the decision of the Club Authority. The SECOND PARTY will submit a copy of the outstanding bill to the Accounts Department of the club and collect it from them.
16. The Club Authority will add the amount of the outstanding bill to the monthly subscription bill and submit it to the Club's Collection Department. The Club's Collection Department will collect the bill and deposit it in the Club's Account.
17. The Club Authority will not have any objection regarding unregistered guest coming to the Food Department and will not be responsible for any outstanding bill of unregistered guests given by the SECOND PARTY.
18. All the guests who may enter the Club Premises for Food. In that case, they have to enter the Club by accepting the Guest Card or Token issued by the Club Authority. (For Security Reason)

19. Any Member or Guest of the Club who carry any legal firearms for their personal security must submit to the Security Department while entering to the club and a token will be issued by the club authority. After leaving the club premises that member or guest shall take their legal firearms by presenting the token issued by the club.

20. All the members of the club must maintain the dress code.

21. All Staff Officers of the Club's Food Department shall wear Dress with the logo Designed by the Club and Use ID Card as Per the Decision of the Club Authority.

22. Mr. Rakib Mohammad Nadim, Managing Partner, MACLARENS. Nominated Company for CKCL Food Department Management & Operation. In case of Evidence of Involvement in any Anti-Social Activities in the Club Food Department or Club Premises, FIRST PARTY (i.e. Club Authority) may terminate the Management and Operation Agreement with the Nominated Company by 3 (Three) months notice.

IN WITNESS WHEREOF, the Parties have signed and executed this said agreement as of the date first above written.

Signature of Witnesses

1. _____

2. _____

3. _____

4. _____

5. _____

1. _____

2. _____

FIRST PARTIES

1. _____

SECOND PARTY